

Court No. - 2

Case :- WRIT - C No. - 37295 of 2011

Petitioner :- Mohd. Ashraf Ansari

Respondent :- U.P. Power Corporation Ltd. And Others

Petitioner Counsel :- Abhishek Mayank

Respondent Counsel :- Neeraj Kumar Mishra, Anubhav Shukla

Hon'ble Ashok Bhushan, J.

Hon'ble Bharati Sapru, J.

As prayed, put up tomorrow i.e. 12.7.2011 as fresh.

Order Date :- 11.7.2011

S.P.

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Hon'ble Ashok Bhushan, J.

Hon'ble Bharati Sapru, J.

Heard learned counsel for the petitioner and Sri Anubhav Shukla, learned counsel appearing for respondents No. 2 and 3.

By this writ petition, the petitioner has prayed for a direction to respondent Nos. 2 to 3 to provide Electric connection in the shop in which the petitioner is a tenant of respondent No.4.

Learned counsel for the respondent Sri Anubhav Shukla, submits that under para 4.4(a) of the U.P. Electricity Supply Code, 2005, the petitioner has to submit no objection from the owner for getting new connection. He further submits that in absence of no objection indemnity bond is to be submitted as provided under U.P. Electricity Supply Code, 2005.

In the present case, it is clear that the owner has not given no objection to get new connection by the petitioner. In such circumstances, it is open for the petitioner to take recourse to the provision of Electricity Supply Code, 2005 and to adopt the appropriate procedure as prescribed therein in case there is no objection. We observe that in case petitioner complies with the provision of the aforesaid code, the respondent No.2 may consider the application of the petitioner and take appropriate decision within a period of two month, after completion of all formalities in accordance with law.

With these observations, this writ petition is disposed of.

Order Date :- 12.7.2011

G.S